

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present

Justice Jamal Khan Mandokhail
Justice Malik Shahzad Ahmad Khan
Justice Muhammad Hashim Khan Kakar
Justice Salahuddin Panhwar
Justice Ishtiaq Ibrahim

**Criminal Appeals No. 43, 359-L, 360-L/2020, 232 & 233/2022,
Criminal Petitions No. 140-K/2018, 1137/2021, 593-L/2017,
939-L, 940-L/23 JPs No. 711/19, 564/23 & CrI. MA 1334/24**

Baz Khan
Mst. Nusrat Bibi
Mehboob Alam
Abdul Rasheed
Syed Ubaid ur Rehman
Muhammad Ramzan
Muhammad Sohail
Asif Khan
Arshad Subhan Khalil
Lal Akbar

***Appellants/
Petitioners***

Versus

The State thr. PG Balochistan, etc.

Respondents

For the Appellants/
Petitioners:

Mr. Muhammad Shabbir Rajput, ASC
(via video link from Quetta) (in all)
Mr. Ishrat Ali Lohar, ASC
Mr. Asif Talpur, ASC

Mr. Shan Zeb Khan, ASC
(in JP 711/19)

Mr. Liaquat Ali Tareen, ASC

Syed Rifaqat Hussain Shah, AOR
(in JPs 564/23, 711/19 & CrI. MA1134 & CrI. P.
1137/21)

On Court's Notice:

For the FSA:

Dr. Muhammd Amjad, DG, FSA
a/w Mr. Sabir Saqlan, Legal Officer, FSA
Mr. Zahid Mehmood, Supervisor, Narcotics,
FSA

For the ANF:

Dr. Waseem Ahmed Qureshi, Spl. Prosecutor,
ANF

For the Provinces:

Syed Baqir Shah, ASC
On behalf of PG Balochistan
Waseem Mumtaz Malik, Addl. AG, Punjab
Mr. Ahmad Raza Gillani, Addl. PG Punjab

Mr. Tariq Siddique, Addl PG Punjab
 Mr. Tahir Iqbal Khattak, Addl. AG
 Balochistan
 Dr. Muhammad Usman Mirza, State
 Counsel, ICT
 Raja Shafqat Abbasi, DAG
 Mr. Ali Haider Saleem, Addl. PG Sindh
 Barrister Salman Safdar, ASC (Amicus Curiae)

Date of Hearing: 17.02.2026

JUDGMENT

Jamal Khan Mandokhail, J. The above titled appeals and petitions involve a common issue of admissibility of a Forensic Expert's Report ('**report**'), based on section 36 of the Control of Narcotic Substances Act, 1997 ('**the Act of 1997**') and rule 6 of the Control of Narcotic Substances (Government Analysts) Rules, 2001 ('**Rules of 2001**'). This Court in *Ikram Ullah*¹, *Imam Bakhsh*², *Khair-ul-Bashar*³, *Qaiser Javed Khan*⁴ and some other cases (**first category of cases**) has held that mentioning of full protocol in the report is mandatory and its non-mentioning vitiates its evidentiary value. Whereas, in *Gul Alam*⁵, *Shazia Bibi*⁶, *Shafa Ullah Khan*⁷, *Liaquat Ali*⁸ and some other judgments (**second category of cases**) passed by different benches of this Court, a contrary view has been taken. To resolve the inconsistency, and to ensure judicial discipline and consistency, this larger bench has been constituted.

First Category of Cases:

2. The basic judgment in the first category of cases is the case of *Ikram Ullah*, wherein a three-member Bench of this Court held that upon receipt of the samples, the Government Analyst is required to adopt a complete and transparent mechanism of analysis, culminating in a report that refers to the necessary protocols, specifies the tests applied, and records their results. It was further held that failure to adhere to this requirement would render the report unreliable and incapable of being treated as conclusive proof.

¹ *Ikram Ullah and others v The State*, (2015 SCMR 1002)

² *The State v Imam Bakhsh and Others*, (2018 SCMR 2039)

³ *Khair-ul-Bashar v The State* (2019 SCMR 930)

⁴ *Qaiser Javed Khan v The State* (PLD 2020 SC 57)

⁵ *Gul Alam v. The State* (2011 SCMR 624)

⁶ *Shazia Bibi v. The State* (2020 SCMR 460)

⁷ *Shafa Ullah Khan v. The State and another* (2021 SCMR 2005)

⁸ *Liaquat Ali and Shad Muhammad v. The State* (2022 SCMR 1097)

In Imam Bakhsh this Court reaffirmed this approach, adding that rule 6 of the Rules of 2001, is mandatory to the extent that the “full protocols” must be mentioned in the report of the Government Analyst, and that its non-compliance would render the report inconclusive and unreliable. The subsequent clarificatory judgments reiterated that protocols constitute an intrinsic and indispensable component of the testing and analytical process. It was thus emphasized that, to fulfill the object and purpose of the Act and the rules, the report must necessarily disclose: (i) the tests applied; (ii) the protocols followed in carrying out such tests; and (iii) the results of the tests so conducted. The crux of first category of cases is that mentioning protocols in the report is mandatory and its non-mentioning vitiates its evidentiary value.

Second Category of Cases:

3. As early as 2011, a two-Member Bench in Gul Alam held that the language of the Rules of 2001 made them directory and not mandatory, and that they could not be applied in a manner that frustrated the purpose of the parent Act. It was further held that in directory provisions, substantial compliance is sufficient and that an Act performed otherwise in accordance with law is not invalidated by non-compliance alone. Subsequently, in Shazia Bibi, a two-member Bench was confronted with a forensic report that fell short of the standard of protocol disclosure set out in Imam Bakhsh and Qaiser Javed Khan. However, the court held that the mentioning of the tests applied and their results in the forensic report substantially and sufficiently met the statutory requirements under rule 6. In Shafa Ullah Khan, a three-member Bench of this Court held that non-mentioning of the detail of the protocols in the report does not entitle the accused to acquittal, and that where the test applied, the name of the protocol and the result of the test are mentioned in the report, no infirmity arises. It was further held that any residual ambiguity in such a report may be addressed by the Trial Court in exercise of its powers under the proviso to Section 510 of the Code of Criminal Procedure (**‘Cr.P.C.’**). The most unequivocal statement of the directory character of the rules was made in Liaquat Ali, wherein a three-member Bench held that the Rules of

2001 are stricto sensu directory and not mandatory in any manner, that they cannot control the substantive provisions of the Act.

Forensic Report:

4. A forensic report ('**report**') is a formal, detailed document prepared by a specialist that presents findings and expresses opinion. A report is used as evidence under section 510 of Cr.P.C., which is reproduced hereinbelow:

Report of Chemical Examiner, Serologist etc.

Any document purporting to be a report, under the hand of any Chemical Examiner or Assistant Chemical Examiner to Government or any Serologist, fingerprint expert or firearm expert [or the chemist or pharmacist or the Forensic Scientist or Hand-writing expert] appointed by Government, [or of the Chief Chemist of the Pakistan Security Printing Corporation, Limited,] upon any matter or thing duly submitted to him for examination or analysis and report in the course of any proceeding under this Code, may, without calling him as a witness, be used as evidence in any inquiry, trial or other proceeding under this Code:

Provided that the Court may, [if it considers necessary in the interest of justice], summon and examine the person by whom such report has been made.]

After the promulgation of the Act of 1997, a report in narcotic cases is used as evidence under section 36, which reads as under:

"36. Reports of Government Analysts.— (1) The Government Analyst to whom a sample of any narcotic drugs, psychotropic substance or controlled substance has been submitted for test and analysis shall deliver to the person submitting it, a signed report in quadruplicate in the prescribed form and forward one copy thereof to such authority, as may be prescribed.

(2) Notwithstanding anything contained in any other law for the time being in force, any document purporting to be a report signed by a Government Analyst shall be admissible as evidence of the facts stated therein without formal proof and such evidence shall, unless rebutted, be conclusive."

To give effect to the Act of 1997, Rules of 2001 were promulgated, rule 6 whereof provides a procedure to be adopted by the Government Analyst while submitting a report. The said rule is reproduced herein below:

"6. Report of result of test or analysis.— After test or analysis the result thereof together with full protocols of the test applied, shall be signed in quadruplicate and supplied forthwith to the sender as specified in Form-II."

5. Through the judgments of Ikram Ullah and Imam Bakhsh, this Court interpreted rule 6 of Rules of 2001, therein it was held that mentioning of full protocols in report is mandatory. In the view of the dictum laid down by this Court in the first category of judgments, the rule-makers have brought material change in rule 6 of Rules of 2001 on 2nd June, 2021, vide S.R.O. No. 1340(I)/2021 (amended rule 6). The unamended rule 6 shall, therefore, apply to all FIRs registered, trials, petitions, appeals etc., pending before court of law prior to the amendment of rule 6 in 2021. Under such circumstances, we will consider the unamended rule 6 based upon section 36 of the Act of 1997 in the light of first and second category of cases, in the first instance and would dilate upon the amended rule 6 of Rules of 2001 subsequently.

6. Section 36 of the Act of 1997 requires that the Government Analyst to whom a sample of any contraband is submitted for test and analysis, *shall deliver to the person submitting it, a signed report in quadruplicate in the prescribed form and forward one copy thereof to such authority, as may be prescribed.* Report issued by a Government Analyst serves as crucial forensic evidence that is admissible as evidence of facts, without summoning the analyst in person, provided that the analyst satisfies four specific conditions when submitting the report, namely, (i) that it be signed; (ii) that it be in quadruplicate; (iii) that it be in prescribed form; and (iv) that it be delivered to the person submitting it. The primary objective of sending seized contraband to the Government Analyst is to obtain scientific confirmation that the substance is, in fact, a narcotic drug or controlled substance as defined under the Act of 1997. Unamended rule 6 of the Rules of 2001, on the other hand, imposes

additional conditions, particularly that the report shall contain full protocol of the test and analysis applied. Section 36 of the Act of 1997 and section 510 of the Cr.P.C. do not impose any such condition for mentioning full protocol in the report. There is visible inconsistency between section 36 of the Act of 1997 and unamended rule 6 of the Rules of 2001. The first question for consideration is that if rules or any provision thereof is inconsistent with the Act or any provision thereof, which will prevail as the final legal authority?

7. Under the Constitution of the Islamic Republic of Pakistan, 1973 (**'Constitution'**), Parliament and each Provincial Assembly hold legislative power to enact law. An Act provides what the law is and delegates rule-making power to the Government. While rules provide the procedures, guidelines, instructions, and mechanisms necessary for the implementation and effective enforcement of the Act. Rules cannot create rights or liabilities, impose new conditions, change or override the meaning of any provision of an Act, nor can they enlarge, restrict, or render any provision of the Act ineffective or redundant. The principle is that an Act is a substantive law, called a parent statute, whilst, rules are procedural law, called subordinate legislation. Rules must be within the limits set by the parent Act and shall always be consistent with it. Thus, an Act being a primary statute, holds superior legal authority, and shall always prevail. Reliance in this behalf is placed on the case of Mehraj Flour Mills⁹. Admittedly, the condition of mentioning full protocols in report, imposed by the unamended rule 6, upon the Government Analyst, is not a condition under section 36 of the Act of 1997. If it is believed that the condition required by the rule is mandatory, the report would then be subject to the rules, and without which, it would have no evidentiary value. Be that as it may, it would amount to recognizing the subordinate legislation to exceed the scope of the parent Act of 1997. If this were the case, the unamended rule 6 would have certainly an overriding effect over the said section making it practically redundant. Relying on the principle of superiority of the parent Act, the condition imposed by unamended rule 6 cannot undermine such authority, hence, cannot make

⁹ Messrs Mehraj Flour Mills and Others v Provincial Government and others (2001 SCMR 1806)

section 36 redundant or ineffective. Thus, the omission to mention full protocol in the report cannot take away the power of the court to consider the report as admissible evidence of fact stated therein, without formal proof, unless rebutted.

The Expression 'Shall' Mandatory or Directory:

8. Another important question for consideration is whether the word 'shall' used in unamended rule 6 carries mandatory or directory characteristics. Section 36 of the Act of 1997, requires a Government Analyst to submit a report specifying his opinion with regard to the material sent to him for the purpose of test and analysis. It is worldwide recognized that the Chemical Examiner must observe full protocols while conducting a test and analysis to reach a correct conclusion. In forensic narcotics testing, a "full protocol" refers to the standardized set of scientific methods and guidelines that forensic laboratories follow to ensure accurate, reliable, and legally defensible results, on the basis whereof, the examiner gives his opinion. The protocol would encompass a description of each and every step undertaken by the Government Analyst in the course of conducting the test and analysis. Without observing full protocol, the opinion of the Government Analyst regarding the material received for analysis shall have no evidentiary value, and such a report and is inadmissible as evidence before the Court.

Unamended rule 6 provides that the "result whereof together with full protocols of the test applied shall be signed". In the first category of cases discussed *supra*, this Court has held that the expression 'shall' used in unamended rule 6 carries a mandatory status whereas, in the second category of cases, it was held to be directory. The expression 'shall' is often interpreted depending upon the context and purpose in which it is used. If non-compliance of any provision of an Act or rules, having the expression "shall", expressly leads to penalty, serious prejudice, or defeats the law's purpose, it is mandatory. When any provision of an Act or rules provides a guideline, instructions or a mechanism for doing something, or imposes a duty on Government officials or the desired purpose is still achieved despite non-compliance, or if no penal

consequences are attached for non-adherence, the expression 'shall' used therein is directory. Reliance in this behalf is placed on a judgment of this Court reported as PLD 2010 SC 759. Following this principle, the condition imposed by unamended rule 6 is just a direction to the Government Analyst for performing his public duty to provide full protocols in report in order to prove that the Analyst applied full protocols while conducting test and analysis. The condition clearly represents a procedural guideline, rather than a substantive legal requirement. In case of failure to mention protocols in the report, the fact that the Government Analyst observed full protocols during test and analysis can still be proved through other evidence or testimony of Analyst. Besides, the unamended rule 6 does not provide any consequences for non-mentioning full protocols in the report. Thus, omission to mention full protocols in the report is a mere procedural defect, which is curable and rectifiable, hence, it is an irregularity, not an illegality. Such defect does not vitiate the evidentiary value of a report nor can it defeat the purpose and object of the Act of 1997. The intention of the rule-makers is therefore obvious, that the expression 'shall' used in unamended rule 6 is directory.

Object of the Condition:

9. There is a clear distinction between observing protocols during test and analysis, and mentioning the protocol in final report as proof of facts of the exercise, undertaken by the analyst during test and analysis. In view of the fact that under Section 36(2) of the Act of 1997, a report is admissible as evidence of the facts stated therein, without formal proof, and the Analyst is exempted from appearing in the Court as a witness. It is in this context that the unamended rule 6 imposed a condition upon the Government Analyst to mention full protocol in the report. The object is to bring all necessary facts, information and details of the entire procedure adopted during the test and analysis on the record, enabling the Court to reach a correct conclusion. However, the Court while exercising power under Section 36 of the Act of 1997 and the proviso to Section 510 of Cr.P.C., may, if considers necessary in the interest of justice, summon and examine the Analyst along with record in order to

testify that the established protocols were observed during the test. This is a sufficient statutory safeguard for the protection of rights and interest of the accused. This does not, however, absolve the Government Analyst of his responsibility to provide all necessary details in the report for the safe administration of justice and to avoid summoning of Government Analyst by the Court. Thus, it is declared that the expression 'shall' mentioned in unamended rule 6 of the Rules of 2001 is directory.

Amended Rule 6:

10. It is important to mention here that after the judgment of Ikram Ullah and Imam Bakhsh passed and followed by different benches of this Court, the Government having rule-making power, decided to reframe rule 6 of the Rules of 2001, to make it in line with the Act of 1997, the proposition of this Court and in accordance with the internationally recognized practice. Consequently, rule 6 of the Rules of 2001 was substantially amended on 2nd June, 2021, which is reproduced herein below:

"6. Report of result of test or analysis.—(1) The Government Analyst to whom a sample of any narcotic drug, psychotropic substance or controlled substance has been submitted for test or analysis under section 36 of the Act shall deliver a signed report in quadruplicate of the Result of the test and analysis, while observing protocols of the tests or analysis applied, after keeping one copy in the record under sub-rule (2) of rule 5 and three copies of the report shall be supplied as early as possible to the sender of the samples for further distribution as follows:—

- (a) one copy of the report be placed in Police File;*
- (b) one copy of the report be submitted in the Trial Court for production as evidence; and*
- (c) one copy of the report be supplied to the accused through concerned court.*

Explanation-I: All four copies shall be treated as primary evidence.

Explanation-II: It shall be deemed to be full and sufficient compliance with the requirement of the rule in respect of the supply of "full protocols of the tests or analysis applied", If—

(i) *for pharmacopoeial drug or any substance, where the tests or methods of analysis prescribed in the official pharmacopoeia are followed, references to the specific tests or analysis in the pharmacopoeias are given in the report;*

(Emphasis supplied)

(ii) *for patent or proprietary medicines or any substance for which the tests and methods prescribed in any of the official pharmacopoeias are applicable and are followed, references to the specific tests or analysis in the pharmacopoeias are given in the report;* **(Emphasis supplied)**

(iii) *for patent or proprietary medicines containing pharmacopoeial drugs for which the official tests or analysis or methods of assays are modified and applied, a description of the actual tests or, as the case may be analysis or methods of assays so applied is given in the report;* **(Emphasis supplied)**

(iv) *for patent or proprietary medicines or any substances for which non pharmacopoeial tests or methods of analysis are available or can be applied but for which tests or methods of analysis given in standard books or journals from which the test or methods or analysis have been adopted, is given in the report;* **(Emphasis supplied)**

(v) *for the narcotic drugs, psychotropic substances, controlled substances and any substance the name of test used at international level under the guidelines of Scientific Working Group On Drugs (SWGDRUGs), United Nations Office on Drugs (UNODC) or any other method of Analytical Chemistry;* **(Emphasis supplied)**

(vi) *for those narcotics drugs, psychotropic substances and controlled substances or any other substance for which methods of test are not available and have been evolved by*

the Government Analyst, a description of tests applied is given in the report; (**Emphasis supplied**)

(vii) *for the test conducted by using techniques such as Mass Spectrometry, Infrared Spectrometry, Raman spectrometry and X-ray diffractometry (X-ray-D) etc. the name of test shall be mentioned; or (**Emphasis supplied**)*

(viii) *The Government Analysts to whom a sample of any drug, psychotropic substance or controlled substance has been submitted, will deliver its report within fifteen days of submission of samples.*

2. Any person being aggrieved on such report may within fifteen days of receipt thereof may make application of the Court for adducing evidence in contravention of the report."

11. This amendment illustrates a clear legislative intent and provides more detailed guidelines to be followed by the Government Analyst whilst preparing a report. Explanation II to the amended rule 6 expressly delineates what amounts to "full and sufficient compliance" with the requirement of supplying the "full protocols of the tests or analysis applied." Clauses (i) to (vii) of Explanation-II cover nearly every substance for which a report is required under Section 36 of the Act of 1997. Every sub-clause of Explanation-II, to amend rule 6 further clarifies that for confirmatory techniques, mere mention of the names of tests conducted in respect of each substance shall constitute sufficient compliance. For further clarification, we have provided emphasis to each sub-clause of Explanation-II, in this behalf in paragraph 12. The amendment stands as a response of the rule makers to the interpretation advanced in *Ikramullah and Imam Bakhsh*, wherein it was held that mere mention of the test was insufficient and that the report must include the detailed procedural steps constituting the protocol. The rule-makers realized the fact that the unamended rule 6 deviated from the provision of the Act of 1997. The 2021 amendment was introduced, keeping in mind the true scope and intent of section 36 of the Act of 1997. It expressly provides that identification and mentioning the respective names of the internationally recognized tests described in clause (i) to (vii) of Explanation II to amended rule 6 of the Rules of 2001 in report amounts to "full and sufficient compliance," of the rule. After following the procedure provided by

rule 6 of the Rules, the original signed report shall be treated as primary evidence as provided by Explanation I.

12. Besides, a significant change introduced in the amended rule is the declaration mechanism provided in the amended Form-II. Field (i) thereof, that requires the Government Analyst to affirm that the requisite protocols have been duly observed during the test and analysis. The affidavit contains that in case it is proved that the analyst intentionally made a false statement with regard to observing the protocols while conducting tests, the analyst would be liable to be prosecuted accordingly. This certification, by the Government Analyst would further ensure that the analyst must apply and observe the necessary protocol, whilst conducting test and analysis. According to section 36(2) of the Act of 1997, the forensic report is presumed to be correct, unless rebutted. As has been explained above, that the said section has safeguarded the interest of an aggrieved person. Sub rule (2) of the amended rule 6 provides a procedure giving an aggrieved person a chance to rebut the presumption of correctness. The Court has the power under section 36(2) of the Act, to call the analyst for further explanation, if it considers necessary in the interest of justice, or may also permit a person aggrieved of the report to produce evidence in order to contravene the report. The scheme of amended rule of 2021, favors reliability, accountability, and verifiability of analysis, without insisting upon unnecessary formalism in reporting.

13. In light of the foregoing, this Court answers the questions referred to it as follows:

Question (i): Is the requirement to mention "full protocols" in the report under unamended rule 6 mandatory or directory?

Answer: Directory. Non-compliance with the protocols requirement under rule 6 as originally enacted in 2021 does not, of itself, invalidate the report or deprive it of its evidentiary value under Section 36(2) of the Act. The unamended rule 6 applies to all cases/FIRs registered prior to the amended rule 6.

Question (ii): What constitutes sufficient compliance with the protocols requirement?

Answer: It expressly provides that identification and mentioning the respective names of the internationally recognized tests described in clause (i) to (vii) of Explanation

II to amended rule 6 of the Rules of 2001 in report amounts to “full and sufficient compliance,” of the rule.

This common judgment deals with divergent views of first and second categories of cases (mentioned in Para 1 *supra*), therefore, it will have no retrospective effect. We would not like to dilate upon merits of these cases. The office to fix all the petitions and appeals for hearing as per the roster, at the earliest without further delay.

Judge

Judge Judge

Judge Judge

Announced in Open Court at Islamabad on _____.

Judge

ORDER OF THE COURT:

By majority of four to one (Justice Malik Shahzad Ahmad Khan dissenting), it is declared that the requirement to mention “full protocols” in the report under unamended rule 6 is directory; and identification and mentioning the respective names of the internationally recognized tests described in clause (i) to (vii) of Explanation II to amended rule 6 of the Rules of 2001 in the report amounts to “full and sufficient compliance,” of the rule. The judgment shall have no retrospective effect.

Judge

Judge Judge

Judge Judge

Islamabad
APPROVED FOR REPORTING
K.Anees & Saniya Diyar, LC